

An Act

ENROLLED SENATE
BILL NO. 1503

By: Daniels of the Senate

and

Lepak of the House

An Act relating to the Choosing Childbirth Act; amending 63 O.S. 2021, Section 1-740.17, as amended by Section 2, Chapter 371, O.S.L. 2024 (63 O.S. Supp. 2025, Section 1-740.17), which relates to grants to private organizations for services; allowing out-of-state organizations to receive grants; and providing an effective date.

SUBJECT: Choosing Childbirth Act grant funding

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 1-740.17, as amended by Section 2, Chapter 371, O.S.L. 2024 (63 O.S. Supp. 2025, Section 1-740.17), is amended to read as follows:

Section 1-740.17. A. The State Department of Health shall make grants, as directed in subsection B of this section, from funds appropriated by the Legislature for the Choosing Childbirth Act.

B. The purpose of the grants shall be to reimburse private organizations ~~in this state~~ for the reasonable expenses of programs providing the services listed in subsection C of this section. The Department shall make grants both directly to the private organizations and to one or more grant-supervising entities, who shall reimburse the private organizations.

C. Reimbursable services provided under the Choosing Childbirth Act shall include:

1. Providing information on, referral to and assistance in securing the services of relevant existing programs or agencies that assist women in this state to carry their children to term, and/or providing services that assist women to carry their children to term including, but not limited to, agencies and programs that will provide:

- a. medical attention for the pregnant woman for the duration of her pregnancy including, but not limited to, obstetric ultrasounds,
- b. mental health and substance abuse services,
- c. nutritional support services,
- d. housing assistance,
- e. transportation assistance,
- f. adoption services,
- g. education and employment assistance, and
- h. parenting education and support services;

2. Providing women in this state, through in-person community outreach and telecare, information and/or services that encourage and assist them to carry their children to term; and

3. Providing services including, but not limited to, health care services to mothers and infants up to three (3) years postpartum for the purpose of reducing the rates of maternal mortality and infant mortality in this state by three percent (3%) not later than July 1, 2026; provided, however, no funds shall be provided to an organization that provides, or whose affiliates provide, abortion services.

D. To be eligible for a service grant, an organization shall:

1. Be registered with the Secretary of State as a not-for-profit corporation ~~located in this state;~~

2. Have the grant amount approved by:

a. the grant-supervising entity, if the grant was provided to the private organization by a grant-supervising entity, or

b. the Department, if the grant was provided directly to the private organization by the Department;

3. For services described in paragraphs 1 and 2 of subsection C of this section, provide each pregnant woman counseled with accurate information on the developmental characteristics of unborn children including offering the printed information described in Section 1-738.3 of this title;

4. Assure that the grant's sole purposes are to assist and encourage women to carry their children to term and to maximize their potentials thereafter as provided in paragraphs 1 and 2 of subsection C of this section or to reduce the rates of maternal mortality and infant mortality in this state as provided in paragraph 3 of subsection C of this section; and

5. Assure that none of the funds provided pursuant to the Choosing Childbirth Act, nor any other funds or services provided by the organization, are used to encourage or counsel a woman to have an abortion not necessary to prevent her death, to provide her such an abortion or to refer her for such an abortion.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 11th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 5th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____